

Through:- Mr. P.S. Pawar vs Manoj Kumar on 21 February, 2025

Author: Moksha Khajuria Kazmi

Bench: Moksha Khajuria Kazmi

Sr. No. 86

HIGH COURT OF JAMMU & KASHMIR AND LADAKH
AT JAMMU

TrP (C) No. 1/2025
CM No. 968/2025

.... Petitioner(s)

Anu Bhav

Through:- Mr. P.S. Pawar, Advocate.

V/s

Manoj Kumar

.....Respondent(s)

Through:-

CORAM : HON'BLE MRS. JUSTICE MOKSHA KHAJURIA KAZMI, JUDGE
ORDER

21.02.2025 In the instant petition, petitioner herein is seeking transfer of the petition filed by the respondent under Section 9 of the Hindu Marriage Act, 1980 against the petitioner titled Manoj Kumar Vs. Anu Bhav from the Court of learned Additional District Judge, Doda to the Court of learned Principal/Additional Principal Judge, Family Court, Jammu It is stated by the learned counsel for the petitioner that the petitioner has already filed complaint under Domestic Violence Act which is pending disposal before the Court of learned JMIC Munsiff, Jammu since 22.12.2021, wherein the petitioner has been granted interim maintenance of Rs. 5,000/- per month. It is further stated by learned counsel for the petitioner that the respondent is appearing before the said Court since 2021 but now has filed a petition under Section 9 of Hindu Marriage Act before the Court of learned Additional District Judge, Doda as such, he seeks transfer of petition under Section 9 of Hindu Marriage Act, against the petitioner from the Court of learned Additional District Judge, Doda to learned Principal/Additional Principal Judge, Family Court, Jammu Issue notice to the respondent. Dasti service is also permitted List on 02.04.2025.

Meanwhile, subject to objections from the other side, till next date of hearing, proceedings in the case titled Manoj Kumar Vs. Anu Bhav pending before the Court of learned Additional District Judge, Doda shall remain stayed.

Vacation/Alteration/Modification on motion.

(Moksha Khajuria Kazmi) Judge JAMMU 21.02.2025 Tarun/PS